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11 *Arizona Secretary of State Adrian Fontes*

12
13 **IN THE SUPERIOR COURT OF THE STATE OF ARIZONA**
14 **IN AND FOR THE COUNTY OF MARICOPA**

15
16 IN THE MATTER OF the July 30, 2024,
Primary Election for the Democratic Party
17 for United States Representative for
Congressional District 3

No. CV2024-021570

**SECRETARY OF STATE'S
REPORT OF RECOUNT RESULTS
AND REQUEST FOR COURT
ORDER CERTIFYING RESULTS**

(Hon. Jennifer Ryan-Touhill)

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22 Pursuant to this Court's August 12, 2024 Order and A.R.S. § 16-665, Arizona
23 Secretary of State Adrian Fontes files this report of the recount results of the votes cast in
24 the July 30, 2024 Primary Election for the Democratic Party for the office of United
25 States Representative for Congressional District 3 (the "Recount").

26 1. A.R.S. § 16-665(A) provides that the Secretary shall provide the results of a
27 recount to the Court, which "shall then announce the result and make and enter an order
28

1 setting forth its determination.” Following delivery of the certified order from the Clerk
2 of the Court to the Secretary, the Secretary will issue a letter declaring nomination to the
3 candidate receiving the highest number of votes, as provided in A.R.S. § 16-645. A.R.S.
4 §§ 16-645(B), -665(A)-(B).

5 2. On August 18, 2024, Maricopa County Elections Director Scott Jarrett
6 transmitted to the Secretary the results of the Recount. Attached hereto as Exhibit A is
7 the Final Summary Report of the Recount. Attached hereto as Exhibit B is the Recount
8 Variance Report.

9 3. The Secretary certifies the recount results as follows:

10 Yassamin Ansari	19,087 votes
11 Raquel Terán	19,048 votes

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14 WHEREFORE, the Secretary of State requests that this court enter an order
15 pursuant to A.R.S. § 16-665 announcing the Recount results of the votes cast in the July
16 30, 2024 Primary Election for the Democratic Party for the office of United States
17 Representative for Congressional District 3 and directing the Clerk of the Court to deliver
18 a certified copy of the Court’s Order to the Secretary forthwith. For the Court’s
19 convenience, a form of order is submitted herewith.

20 RESPECTFULLY SUBMITTED this 20th day of August, 2024.

21
22 Kristin K. Mayes
Attorney General

23 /s/ Karen J. Hartman-Tellez
24 Karen J. Hartman-Tellez
25 Kara Karlson
26 Senior Litigation Counsel
27 Kyle Cummings
Assistant Attorney General
28 *Attorneys for Arizona Secretary of
State Adrian Fontes*

1 FILED this 20th day of August, 2024.

2 COPIES served via email and/or hand delivery
3 this 20th day of August, 2024, to:

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By: /s/ Karen J. Hartman-Tellez

EXHIBIT A

JULY 30, 2024 OFFICIAL RECOUNT PRIMARY ELECTION

Elector Group	Counting Group	Voters Cast	Registered Voters	Turnout
DEM	EARLY VOTE	281,310	692,294	40.63%
	ELECTION DAY	11,681		1.69%
	PROVISIONAL	248		0.04%
	Total	293,239		42.36%
REP	EARLY VOTE	377,312	851,227	44.33%
	ELECTION DAY	27,359		3.21%
	PROVISIONAL	468		0.05%
	Total	405,139		47.59%
LBT	EARLY VOTE	1,407	18,837	7.47%
	ELECTION DAY	98		0.52%
	PROVISIONAL	2		0.01%
	Total	1,507		8.00%
GRN	EARLY VOTE	333	1,878	17.73%
	ELECTION DAY	14		0.75%
	PROVISIONAL	1		0.05%
	Total	348		18.53%
NOL	EARLY VOTE	760	18,364	4.14%
	ELECTION DAY	51		0.28%
	PROVISIONAL	5		0.03%
	Total	816		4.44%
NON	EARLY VOTE	3,551	837,009	0.42%
	ELECTION DAY	427		0.05%
	PROVISIONAL	7		0.00%
	Total	3,985		0.48%
Total	EARLY VOTE	664,673	2,419,609	27.47%
	ELECTION DAY	39,630		1.64%
	PROVISIONAL	731		0.03%
	Total	705,034		29.14%

Voters Cast: 705,034 of 2,419,609 (29.14%)

DEM US Rep Dist CD-3 (Vote for 1)
DEM

	Total	
Times Cast	44,036 / 137,062	32.13%
Undervotes	820	
Overvotes	302	

Candidate	Party	Total	
ANSARI, YASSAMIN	DEM	19,087	44.48%
TERÁN, RAQUEL	DEM	19,048	44.39%
WOOTEN, DUANE M.	DEM	4,686	10.92%
Write-in		93	0.22%
Total Votes		42,914	

EXHIBIT B



Recount Variance Report

RECOUNT | PRIMARY ELECTION | JULY 30, 2024

SYNOPSIS:

Pursuant to A.R.S. § 16-661 through A.R.S. § 16-664 and the 2023 version of the Elections Procedures Manual, Maricopa County has completed the reconciliation of the Automatic Recount for the United States Representative Congressional District 3 Democratic (CD3-DEM) contest. All early and provisional ballots were included in the recount. The Election Day ballots from all Vote Centers where a voter that was eligible to vote a ballot with the CD3-DEM contest were included. This included 131 of the 222 total Vote Centers from the Primary Election. During the recount, there were 3,664 batches tabulated, totaling 705,034 ballots. This included 44,036 ballots cast in the CD3-DEM contest. Below is a summary of the variances identified during the recount in Maricopa County.

- **Ballot Variance** –The recount identified two separate ballot variances from the original count. Both ballot variances involved a ballot that was jammed as it was being fed into the tabulator during the original count.
 - One instance happened at a Vote Center, involving a ballot that was inadvertently fed through a tabulator a second time after it had been counted during a paper jam. The voter under the guidance of the poll worker reinserted the ballot into the tabulator not realizing it had already been counted when it jammed. This resulted in one less Election Day ballot being reported in the recount and one less vote for Wooten.
 - A second instance occurred on a central count tabulator. When counting a batch of early ballots, one ballot was not tabulated in the original count after a batch of ballots jammed as they were being fed into the tabulator. This resulted in one more early ballot being reported in the recount and an additional vote for Raquel Terán.
- **Adjudication Variance** – Federal and state law require adjudication boards to tally results for write-in candidates, overvotes, blank ballots and ambiguous marks (e.g. stray marks, check marks). The recount adjudication boards confirmed the decisions made by the original adjudication in nearly all instances. There were 2 instances that impacted the recount results where the recount adjudication board came to a different conclusion than the original count adjudication board. Both instances are described below.
 - One instance occurred when the adjudication board from the original count determined that the CD3-DEM contest was overvoted. During the recount, the board determined that the contest was not overvoted and removed an overvote, awarding a vote to Raquel Terán. Upon inspection of the ballot, the voter had a consistent marking pattern and used black ink throughout the ballot. In the CD3- DEM contest the voter filled in a second oval and appeared to use white-out or another substance that turned the ink to a light blue and placed a shimmer over the oval. This resulted in Raquel Terán gaining a vote in the recount as compared to the original count.
 - The second instance occurred when a voter partially filled in the ovals next to Raquel Terán and the write-in line. The voter then wrote in Raquel Terán's name in the write-in line. The original adjudication board removed the overvote, but failed to award the vote to Raquel Terán as indicated by the voter's intent. The recount adjudication board, correctly assigned the vote to Raquel Terán. This resulted in Raquel Terán gaining a vote in the recount as compared to the original count.

See table below for the net ballot and adjudication variances for the top two candidates subject to the recount.

United States Representative Congressional District 3 – Democratic Contest		
	Ansari, Yassamin	Raquel, Terán
Primary Election Count	19,087	19,045
Primary Election Recount	19,087	19,048
Total Net Variance		3